

Court No. - 21

Case :- WRIT - C No. - 33852 of 2021

Petitioner :- Mohd. Gulfam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Shri Ram (Rawat),Giri Ram
Rawat,Indra Deo Mishra

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Dr. Kaushal Jayendra Thaker,J.

Hon'ble Ajai Tyagi,J.

This matter has been listed before this Court by the orders of
Hon'ble The Chief Justice.

None is present for the petitioner even in the revised call.

List the matter on 17th January, 2022 as fresh.

Order Date :- 21.12.2021

Ashutosh Pandey

Court No. - 3

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Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

Heard learned counsels for the parties.

This writ petition has been filed praying for the following reliefs:

"(a) Issue a writ order or direction in the nature of certiorari quashing the impugned Assessing Calculation Memo/Notice dated 26.12.2020 issued by respondent no 2 i.e. Executive Engineer Electricity Distribution Division, Murad, Nagar, Ghaziabad and recovery Citation dated 30.9.2021 [to recover the amount of Rs.207324/-] issued by Tehsildar, Modinagar Ghaziabad/respondent no 5 against the petitioner

(b) Issue an appropriate writ , order or direction in the nature of Mandamus restraining the respondent no 2 i.e. Executive Engineer Electricity Distribution Division, Murad Nagar Ghaziabad from disconnecting electricity supply of the petitioner.

(c) Issue an appropriate writ , order or direction in the nature of Mandamus restraining respondent no 4 i.e. Collector/District Magistrate , District Ghaziabad Or respondent no 5 Tehsildar Tehsil - Modinagar Distt. Ghaziabad from taking any coercive measure for recovery of the amount of Rs.207324/-in pursuance of Citation dated 30.09.20201."

Learned counsel for the respondent No.2/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is disposed off giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent No.2 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.2 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 20.5.2022

o.k.